

Court No. - 40

Case :- WRIT - C No. - 14221 of 2025

Petitioner :- Ekta Malviya

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Shailesh Kumar

Counsel for Respondent :- Krishna Agarawal, Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

This is a writ petition under Article 226 of the Constitution of India wherein the petitioner has sought to challenge the order dated March 24, 2025, issued by the respondent No. 3, the Executive Engineer, Electricity Distribution Division-IV, Purvanchal Vitran Nigam Limited, Varanasi, District Varanasi. Also, the writ petitioner seeks a direction to the respondent-authorities to stop the meter billing and install a new Meter and send/reflect a proper bill in reading and not to disconnect the connection during the pendency of this petition.

Upon hearing the counsel for parties and perusal of the impugned order, we do find from the impugned order that there are several disputed questions of fact involved. Thus, this matter is not amenable to the writ jurisdiction and therefore, we feel that the petitioner is required to be relegated to an alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005, whereunder, the petitioner can file an application before the Consumer Grievance Redressal Forum.

In light of the same, the petitioner is directed to file an application under Clause 7.10 of the Code, within a period of two weeks from date. If such an application is filed, the same is directed to be

decided by the concerned authority, within a period of eight weeks from the date of filing of the said application and after a proper opportunity of hearing being afforded to the petitioner.

With the above directions, the writ petition is **disposed of**.

Order Date :- 7.5.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Shekhar B. Saraf, J.]